

26STCP01336 26STCP01336

County: los-angeles

Division: Civil Law and Motion

Department: 834

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Case Number: 26STCP01336 Hearing Date: June 30, 2026 Dept: 834

Superior Court of

California

County of Los Angeles

Department 834

DONALD

CONDON,

Petitioner,

vs.

SUCCESSOR

AGENCY OF POMONA, et al.

Respondents.

Case No.:

26STCP01336

Hearing Date:

June 30, 2026

[TENTATIVE] ORDER RE: MOTION TO VACATE

I. BACKGROUND

Donald Condon ("Petitioner") filed a petition for writ of mandate seeking to compel the Successor Agency of Pomona, City of Pomona, Pomona Police Department, Inland Valley Humane Society, and Does 1 to 50 (collectively, "Respondents") to comply with mandatory duties, return unlawfully seized property, correct procedural violations, and remedy a governmental taking arising from actions taken under void, forged, or procedurally defective orders.

On May 14, 2026, Petitioner filed a "motion to vacate void orders," citing Code of Civil Procedure section 473, subdivision (d). On June 16, 2026, Respondent Inland Valley Humane Society ("Inland Valley" or "Respondent") opposed the motion. On June 22, 2026, Petitioner filed a reply.

II. evidentiary matters

Petitioner requests judicial notice of an "official Case Field Report" that is purportedly generated and maintained by the City of Pomona's Code Enforcement Division. The Court denies the request because there are insufficient indicia that the documents are from the City of Pomona Code Enforcement Division's files or records. (See Evid. Code, § 452, subd. (c).)

Respondent requests judicial notice of seven items, most of which are court records. The Court grants Respondent's requests for judicial notice as to Exhibits 2-9. (Evid. Code, § 452, subd. (d).) However, the Court takes judicial notice only as to "the existence, content and authenticity of public records and other specified documents" and the legal effect of the documents' language when that effect is clear, it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta*, (2022) 87 Cal.App.5th 389, 400; *Fontenot v. Wells Fargo Bank, N.A.*, (2011) 198 Cal.App.4th 256, 265.)

The Court DENIES Inland Valley's request for judicial notice as to Exhibit 1, as it contains no file stamp from the court. (See Evid. Code, § 452, subd. (d).)

Respondent likewise submits evidentiary objections to Petitioner's evidence in support of his motion. The objections are overruled; the evidence is admitted, but the Court will assign appropriate weight and relevance, if any, in determining the merits of this motion.

III. LEGAL STANDARD

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).)

III. DISCUSSION

Petitioner argues the orders in Case No. 25STCP00565 (First Case) are void because the stipulation to the commissioner was executed using a forged signature of Mayra Emilia Langerica ("Langerica") without her knowledge or consent.

Respondent responds that the motion is barred by res judicata because Petitioner seeks to invalidate orders issued in a different case to which he was not a party. Respondent asserts Petitioner lacks standing and, in any event, the issue was already litigated. The First Case court expressly rejected Langerica's argument of forged signature and found that she had stipulated to the commissioner. Respondent contends this Court may not revisit or contradict that prior ruling. Respondent also argues that if Petitioner believed he had a material interest in the First Case, his remedy was to participate in that action, not file a new case.

Respondent further contends the motion is an untimely and improper appeal. Food and Agriculture Code section 31622, subdivision (a), provides a five-day deadline for appealing determinations made under that statute.[1] Respondent asserts Langerica abandoned her appeal of one decision and did not appeal the subsequent ruling that she had stipulated to the commissioner. Respondent also notes that any appeal lies with the Appellate Division, not this Court, and that Petitioner is attempting to avoid proper writ procedures and the Appellate Division's jurisdiction.

In reply, Petitioner argues the five-day appeal deadline never began to run because Respondents skipped a mandatory administrative hearing. Petitioner asserts no administrative record exists because no administrative process occurred and further contends the Appellate Division has already stated it lacked jurisdiction and that Petitioner has no avenue to appeal the vicious-dog order there.

The Court finds Petitioner's motion unpersuasive. First, Petitioner lacks standing to challenge rulings in the First Case because he was not a party to that action. (Respondent RJN, Ex. 2; *In re Marriage of Marshall* (2018) 23 Cal.App.5th 477, 485.) This alone provides an independent basis to deny the motion.

Second, even assuming standing or privity were proper, the First Case court resolved the issue of Langerica's stipulation to the commissioner and found she had stipulated. (Respondent RJN, Exs. 3-4.) Claim preclusion applies when (1) the prior decision is final and on the merits; (2) the present proceeding concerns the same cause of action; and (3) the parties or their privies are the same. (*Plan. & Conservation League v. Castaic Lake Water Agency* (2010) 180 Cal.App.4th 210, 226.)

Third, even if the first two bases were not fatal to Petitioner's motion, Food and Agriculture Code section 31622, subdivision (a), requires appeals of such determinations to be filed within five days. The potentially dangerous dog determination was issued March 6, 2025 and noticed March 7, 2025. (Respondent RJN, Ex. 2; Proof of Service (3/7/25), Case No. 25STCP00565; *Starr v. Ashbrook* (2023) 87 Cal.App.5th 999, 1014.) Again, even assuming that Petitioner had standing to challenge the rulings in the First Case, and even assuming that "appeal" to this Department were the proper procedure, Petitioner filed this petition April 3, 2026, well over a year later, and thus this Court would lack jurisdiction to review that determination in any event. Separately, this Court may not invalidate or reconsider the First Case court's orders. "Generally, one trial court judge may not reconsider and overrule an interim ruling of another trial judge." (*In re Marriage of Oliverez* (2015) 238 Cal.App.4th 1242, 1248.)

For these reasons, the motion is DENIED.

IV. CONCLUSION

Based on the foregoing, the Court DENIES Petitioner's motion to vacate.

Respondent is ordered to give notice.

DATED: June
30, 2026

Hon. Tiana J. Murillo

Judge of the Superior Court

PLEASE TAKE
NOTICE:

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Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the

court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1] Food and

Agricultural Code section 31622, subdivision (a), states that “[a]fter the hearing...the owner or keeper of the dog shall be notified in writing of the determination and orders issued, either personally or by first-class mail... If the petitioner or the owner or keeper of the dog contests the determination, they may, within five days of the receipt of the notice of determination, appeal the decision of the court or hearing entity of original jurisdiction... If the original hearing held...was before a hearing entity other than a court of the jurisdiction, appeal shall be to the superior court. If the original hearing was held in the superior court, appeal shall be to the superior court before a judge other than the judge who originally heard the petition. The petitioner or the owner or keeper of the dog shall serve personally or by first-class mail...notice of the appeal upon the other party.”